SYNOPSIS

This Special Leave Petition is filed against the judgment and final order DATED 04.12.2024 of a Division Bench of the Hon'ble High Court of Karnataka at Bengaluru passed in C.C.C. (Civil) No.1168/2023 on its file

Brief facts:

The Petitioner who was appointed on July 14, 2000 as an Assistant Surgeon in the Department of Health and Family Welfare, State of Karnataka, having successfully completed her period of probation stood confirmed in service with effect from 13.07.2000 by an order dated 19th March 2003.

By a Notification dated 12.09.2013 the petitioner was deputed as an Assistant Professor, obviously in public interest and under special circumstances to the Institute of Nephro Urology, Victoria Hospital Campus, Bangalore, which is an autonomous institution under the Medical Education Department of the State. Even to this day she has been serving as such for the last over 11 years, continuously. Even though the initial period of deputation had been stated as one year or till further orders were made in that behalf.

By a notification dated 11.09.2014 the deputation had been extended by 4 years. Having not been repatriated to the parent Department and having treated her for all intents and purposes as a permanently absorbed official in the Medical Education Department at the Institute of Nephro Urology, she submitted a representation on 21.02.2015 for a formal order

of absorption, particularly in view Rules 419 to 425 of the KCS Rules 1958 under which the maximum period of deputation of any official is 5 years.

Whereas she had been appointed as an Assistant Surgeon, in the Health & Family Welfare Department of the State, she was deputed to the Institute of Nephro Urology under the Medical Education Department of the State as an Assistant Professor, in which capacity she has been serving till date.

A communication was issued by the Department to her on 14.06.2016 intimating the Institute that its decision to absorb the services of the petitioner as an Assistant Professor in public interest. As no action was taken pursuant thereto, she knocked the doors of the Hon'ble High Court of Karnataka at Bengaluru, for her absorption. In the writ appeal araising from the writ petition, she had filed an affidavit dated 04.12.2017 that she would not claim interse seniority from the date of deputation and would claim it from the date of her absorption.

An order was passed by the Department on 08.02.2018 professing to absorb her in the services of the Institute in accordance with rule 16 (a) (ii) of the KCS (General Recruitment) Rules, 1977. Feeling aggrieved by the said prospective absorption dated 18.02.2018 she had filed a writ petition in W.P. No.28453/2018 praying for a direction for her absorption with effect from 12.09.2013. Feeling aggrieved by the order

passed in the said writ petition she had filed an intra-court appeal in W.A. No.81/2020. It culminated in a judgment dated 28.02.2020 rendered by a Division Bench of the Hon'ble High Court of Karnataka, Bengaluru, which setaside the order dated 08.02.2018 of a learned single judge, assailed in the said writ appeal. It was directed in the said judgment that the State Government should consider the case of the petitioner for absorption in the cadre of Assistant Professors in accordance with law as expeditiously as possible, however fixing an outer-limit of one month from 28.02.2020 for compliance. After submitting several representations which did not result in the required compliance with the directions issued in the writ appeal she caused a Legal Notice dated 03.09.2023 addressed to the 1st respondent herein who was the Principal Secretary to the Government of Karnataka in the Department of Health and Family Welfare Services, Medical Education.

On 12.05.2020 the 1st respondent issued an endorsement to the petitioner intimating her that she has been re-absorbed in the cadre of Assistant Professor and continued in the services of the Institute of Nephro-Urology and that a fresh order of absorption would be issued after a meeting of the Governing Council of the Institute which is the highest authority thereof would be held. On 24.01.2022 the Governing Council held its meeting at which it was resolved to absorb the petitioner in the services of the Institute. Yet another meeting of the Governing Council was held on 16.08.2022 where again it was resolved in favour of the

petitioner as regards her seniority in the services of the Institute treating her senior in the cadre.

Pursuant thereto the minutes/resolution was forwarded to the Director of the Nephro-Urology Institute asking him to take further action in the matter, for implementing the resolution, of the Governing Council. Since it was not done despite such a resolution and the letter of Government, the petitioner submitted a representation dated 07.07.2023 requesting for a formal order of absorption being issued to her in implementation of the resolution of the Governing Council. Such an order was not issued and has not even to this day.

Meantime, a certain Assistant Professor by name Dr. C.G. Sridhar questioned the communication dated 18.11.2022 in his writ petition in W.P. No.23876/2022. A learned single judge of the Hon'ble High Court of Karnataka having allowed the same by quashing the proceedings dated 16.08.2022, the petitioner has preferred an intra-court appeal in W.A. 1091/2023 questioning the said order dated 08.08.2023. The said appeal is pending adjudication even to this day.

Since no formal order was and has been issued to her, despite several representations submitted by the petitioner, she filed a writ petition in W.P. No.21630/2023 on 21.09.2023 praying for a direction in the nature of a mandamus being issued for a formal order of absorption to her in the services of the Institute with retrospective effect from 12.09.2013 from

which date, as already stated, she has been continuously serving at the Institute as Assistant Professor, without any break.

Feeling it appropriate to knock at the doors of the Government urging upon it to issue a formal order of absorption she withdrew the said writ petition and filed a Contempt of Court Petition in C.C.C. (Civil) No. 1168/2023, complaining of the judgment dated 28.02.2020 passed in W.A. No.81/2020 submitting that the said judgment had not been implemented. Had a formal order of absorption been issued in implementation of the directions issued in W.A. No.81/2020 the petitioner's grievance would subside and would not survive. However even to this day no such order having been issued the respondents sought to cut the corners too fine by contending that, according to them, the judgment rendered in W.A. No.81/2020 had been "substantially complied with" which assertion of the respondents was disputed by the petitioner.

Posterior to the petitioner withdrawing the writ petition mentioned above she pursued her request with the Government by submitting several representations as the requests were turned a deaf ear, towards she filed the aforementioned C.C.C. No. 1168/2023 the verdict dated 04.12.2024 rendered in which is assailed through this Special Leave Petition for the reason that the proceedings which ought to have culminated in an appropriate order for compliance with the directions issued in W.A. No. 81/2020 has been disposed of without any such direction, that to by

observing that the Hon'ble High Court would not express any opinion on the merits of the case pleaded by either of the parties.

For completion of the narration of facts the petitioner respectfully brings to the kind notice of this Hon'ble Court that she has filed yet another writ petition in W.P. No.12280/2024 praying for an order of absorption being issued to her with effect from 12.09.2013 from which date she has been continuously serving at the Institute as an Assistant Professor. In the said petition an interim order dated 18.06.2024 has been passed to the effect that the Governing Council having resolved on the same day that the petitioner be sent back to the Health and Family Welfare Department of the State should not give effect to it without the leave of the Hon'ble High Court. The said petition is pending adjudication.

On 25.06.2024 yet another order has been passed in the said writ petition that no precipitating action pursuant to the Governing Council resolution dated 18.06.2024 shall be taken during the pendency of the said petition. The said order is in operation even to this day and the said petition is also pending adjudication.

Since the Contempt of Court Petition has been closed without the required action being taken for implementation of the judgment dated 28.02.2020 rendered in W.A. No.81/202, the petitioner who has been moving from pillar to post for the last several years is aggrieved by the

same, and hence, feels it expedient and apposite to assail the impugned order dated 4th December 2024 rendered in C.C.C. No. 1168/2023.

As the petitioner has been left high and dry, notwithstanding the judgment dated 28.02.2020 passed in W.A. No.81/2020, and even to this day no formal order of absorption has been issued to her, she feels quite highly aggrieved by the impugned judgment of the Division Bench. Hence, this petition.

The Petitioner submits that the impugned order is bad in law on the following grounds:

Hence, the present Special Leave Petition.

LIST OF DATES

	Hence, the present Special Leave Petition.

IN THE SUPREME COURT OF INDIA
[ORDER XXII RULE 2(1)]
CRIMINAL APPELLATE JURISDICTION
(Under Article 136 of the Constitution of India)
(WITH PRAYER FOR INTERIM RELIEF)
SPECIAL LEAVE PETITION (CRL.) NO. _____ OF 2024

(Arising out of the impugned Final Judgment/Order passed by a Divisional Bench of the Hon'ble High Court of Karnataka at Bengaluru dated 04.12.2024 in C.C.C. (Civil) No. 1168/2023 titled *Dr. Leelavathi V., Vs. Mr. Jawait Akhtar and another*.)

IN THE MATTER OF:

BETWEEN	**POSITION OF PARTIES**		
	BEFORE HON'BLE HIGH COURT	**BEFORE THIS HON'BLE COURT**	
Dr. Leelavathi V	Complainant	Petitioner	
Versus			
Mr. Jawaid Akhtar	Respondent No.1	Respondent No. 1	
The State of Karnataka	Respondent No.2	Respondent No. 2	

BOTH RESPONDENTS ARE CONTESTING RESPONDENTS

TO,

THE HON'BLE CHIEF JUSTICE OF INDIA AND HIS COMPANION JUSTICES OF THE SUPREME COURT OF INDIA

THE HUMBLE PETITION
OF THE PETITIONER
ABOVE NAMED

MOST RESPECTFULLY SHOWETH:

1. This Special Leave Petition has been preferred against the judgment and final order of A Division Bench of the Hon'ble High Court of Karnataka at Bengaluru, dated 04.12.2024 rendered in C.C.C. No.1168/2023 (Civil)

2. QUESTIONS OF LAW:

A. Whether the Hon'ble High Court is justified in dropping the proceedings when the directions issued in W.A. No.81/2020 have remained without compliance even after the Contempt of Court Proceedings were initiated, and the respondents did not dispute the incontrovertible fact that a formal order of absorption of the petitioner in the services of the Institute of Nephro-Urology has not been issued?

B. Whether the Hon'ble High Court which has observed in paragraph 16 of the impugned order that the petitioner was informed on 12.05.2020 that her case for absorption was under consideration, and further that, even at the meeting of the Governing Council held on 24.01.2022 no decision as regards the absorption of the petitioner was taken, justified in disposing off the petition without the respondents being proceeded against for disobedience of the verdict rendered in W.A. No.81/2020?.

C. Having further observed in the same paragraph of the impugned judgement that the further notings placed on record by the

respondents would indicate that the petitioner's request for absorption was under consideration even as on 13.05.2022, is the Hon'ble High Court justified in dropping the proceedings, without the directions issued in W.A. No.81/2020 being complied with by the issuance of an order of absorption?

D. Whether the Hon'ble High Court is right in observing in paragraph 17 of the impugned judgment that the Resolution dated 18.06.2024 passed by the Governing Council (Administrative Board) would mark substantial compliance of the directions issued in writ appeal dated 28.02.2020?

E. Whether the finding recorded in paragraph 18 of the impugned order that the directions are substantially complied with and that nothing would survive further "further consideration in the contempt petition", tenable in the facts circumstances and the backdrop of the case?

F. Whether having initiated proceedings on the Contempt of Court Petition was it not necessary for the Hon'ble High Court to proceed in accordance with the Contempt of Court Act, 1971, either by punishing the respondents for non-compliance of the order/ judgment the disobedience of which was complained of or by directing compliance of the said directions.

3. DECLARATION IN TERMS OF RULE 2(2):

That the Petitioner states that no other petition seeking leave to appeal has been filed by her against the impugned judgment and final order.

4. DECLARATION IN TERMS OF RULE 4:

The Annexures produced along with the Special Leave Petition, Annexure P-_____ are true copies and Annexures P- _____ are true translated copies of the pleadings/documents which formed part of the record of the case in the Courts below against whose order the leave to appeal is sought for in this petition.

5. GROUNDS:

A. **BECAUSE** the Hon'ble High Court erroneously

B. **BECAUSE** the Hon'ble

6. MAIN PRAYER:

It is most respectfully prayed that this Hon'ble Court may graciously be pleased to:

(A) Grant Special Leave to appeal against the impugned judgment and final order dated 04.12.2024 passed in C.C.C. No. 1168/2023 (Civil);

(B) Pass any other order and/or direction as this Hon'ble Court may deem fit and proper to be passed in favour of the Petitioner in the interest of justice and equity.

PLACE: NEW DELHI

DRAWN ON:

FILED ON:

FILED BY:

ADVOCATE FOR THE PETITIONER

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) NO._____OF 2024

IN THE MATTER OF:-

...PETITIONERS

VERSUS

STATE OF KARNATAKA & ORS. ...RESPONDENTS

AFFIDAVIT

I, Dr. Leelavawthi V., aged about 51 years, w/o. Dr. Naveen R., Working as Assistant Professor, Institute of Nephro-Urology, Victoria Hospital Campus, Bengaluru – 560 002, do hereby solemnly affirm and declare as under:-

1. That I am the petitioner in the above said matter and I am fully conversant with the facts and circumstances of the above mentioned case. Hence I am competent to swear to this affidavit.
2. That, the synopsis and List of Dates from page No.B to , SLP from pages Nos. - , paras from 1 to 8 and accompanying I.A(s) have been drawn by my advocate, under my instructions. I have read and understood the contents of the above and I say that the same are true and correct to the best my knowledge and belief.
3. That the Annexures filed alongwith the Petition are true copies of their respective originals.

DEPONENT

VERIFICATION

I, above named do hereby state on solemn affirmation that the contents of this Affidavit are true and correct to the best of my own knowledge and record and nothing material has been concealed therefrom.

Verified at New Delhi on this th day of

DEPONENT

IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION
SPECIAL LEAVE PETITION (CIVIL) NO. OF 2024

In the matter of:

DR. LEELAVATHI V.	**...PETITIONER**
VERSUS	
MR. JAWAID AKHTAR & ANOTHER	**...RESPONDENTS**

VAKALATNAMA

I, **Dr. Leelavathi V.,**, the **Petitioner** in the above Petition/ Appeal do hereby appoint and retain **.....,** Advocate of the Supreme Court of India to act and appear for me in the above Suit/ Appeal/ Petition/Reference and on my/ our behalf to conduct and prosecute (or defend) the same and all proceeding that may be taken in respect of any application connected with the same or any decree or order passed therein including proceedings in taxation and application for Review, to file and obtain return of documents, and to deposit and receive money on my/ our behalf in the said Suit/ Appeal/Petition/Reference and in applications of Review, and to represent me/ us and to take all necessary steps in my/ our behalf in the above matter. I/We agree to ratify all acts done by the aforesaid Advocate in pursuance of this authority.

Dated this the day of December, 2024

Accepted, Identified & Certified

PETITIONER(S)

( )
Advocate, Supreme Court of India

MEMO OF APPEARANCE

To,
The Registrar,
Supreme Court of India
New Delhi

Sir,

Please enter my appearance on behalf of the Petitioner in the matter above mentioned.

At New Delhi on the _____ day of December, 2024

Yours faithfully

[ ]
ADVOCATE FOR THE PETITIONER
CC. No.
CHAMBER NO.,
NEW BLOCK, SUPREME COURT OF INDIA
Email:
Ph. No.